

Paper 2

INTEGRATE SAMIKSHA P2 VALUE ADDITION (GROUP + ARCHITA)

Indian Constitution:

<u>TOPIC</u>	<u>INTRO</u>	<u>CONCLUSION</u>
<u>Historical underpinnings, Evolution of Consti</u>		
<u>Basic structure</u>	Context - VP criticized Meaning - Judicial innovation under KSB case to ensure power of amendment u/a 368 is not misused by Parliament	Upendra Baxi - “BSD applies brakes when the engine of amending power threatens to overrun the Constitution” CJI - BSD is the Pole star which guides us when we are lost
<u>Parliamentary Democracy vs Presidential</u>	Parliamentary: form of democracy where the executive branch is accountable to the legislative branch, with a PM as head of govt. Part of BSD. Presidential system: A form of democracy where executive branch is separate from legislative branch, with directly elected President as both head of state and government	"Parliamentary democracy is the bedrock of India's governance, where diverse voices converge to shape the nation's destiny." - ABV
<u>FRs</u>	Specific article Fundamental rights are the basic human rights enshrined in the Constitution (Part 3 - Art. 12-35) which are guaranteed to all citizens.	FRs create conditions for moral and material progress of citizens while ensuring constitutionalism/limited govt in line with “we the people”.
<u>DPSPs</u>	DPSP are non justiciable moral precepts enshrined in the constitution (Part 4 - Art 36-51) to be followed by state in governance for SE justice	‘DPSP are life-giving provisions of the constitution’- LM Singhvi FRs, DPSP constitute Heart & Soul of the Constitution
<u>Preamble</u>	introductory statement in constitution that explains its philosophy and objectives. LIC case & Kesavananda Bharti - part of const but not directly enforceable	K M Munshi - “horoscope of our sovereign democratic republic”
<u>Reservation</u>	Affirmative action taken by the State to remove persistent discrimination on a	Justice Ranganath Mishra Commission - Bring

	<u>particular segment of society</u> <u>Context - Haryana local job quota</u> <u>JUDGEMENTS:</u> <u>Nagraj case -</u> 1. <u>equality part of Basic structure</u> 2. <u>Width & Identity test</u> a. <u>Width - 50% limit, creamy layer, compelling reasons of backwardness, admintv efficiency</u> b. <u>Identity - BSD</u> <u>Indira Sahwney - struck down 10% reservation by Narsimha Rao for General Category</u> <u>NALSA, Ram Singh vs UOI- state is duty bound to discover new emerging groups</u>	<u>uniform criteria based on socio-economic backwardness</u> <u>Pratap Bhanu Mehta - “Purpose of reservation has been stretched beyond combating discr & empowering marginalised to an anti povert measure - a load it cannot bear”</u> <u>Montek Singh Ahluwalia - “Strong consensus for weak reforms”</u>
<u>FDs</u>	<u>42nd CAA 1976 added part 4A on recommendations of Swarn Singh Committee providing for moral obligations of citizens towards state & fellow citizens.</u>	<u>Promises of Part 3 & 4 cannot be fulfilled without effective realization of citizen duties under Part 4A. “The true source of rights is duty. - Gandhi</u> <u>Conscience of Consti</u>
<u>Sedition</u>	<u>Context - LC 279th report recently reviewed & recommended retaining 124A</u> <u>Gandhiji - 124A is the prince among sections of IPC to suppress liberty of people</u> <u>Judgements:</u> <u>Kedarnath vs State of BH, Arup Bahyan case - only if incitement to violence</u> <u>SG Vombatkere vs UOI - SC suspended operation of 124A pending review, colonial legacy</u>	<u>Kishan Bhai vs State of GJ - Policemen must be prosecuted for filing chargesheet against a person knowing he was innocent</u> <u>Cutting the tree vs cutting entire forest</u> <u>Process becomes the punishment</u>
<u>Dissent / FOSE</u>	<u>D Y Chandrachud - “Dissent is the Safety Valve of democracy”</u> <u>Judgements:</u> <u>Shreya Singhal - 66A</u> <u>MediaOne case</u>	<u>Abhinav Chandrachud in “Republic of Rhetoric: - Main challenge to FOSE is not state imposed restrictions but demands of masses who favor limitations of speech / Heckler’s veto</u>

	FOSE - 2 premises: 1. Instrumental value theory - means to end (democracy, truth, ART) 2. Intrinsic value theory (liberty, self dev to full potential)	“Censorial powers is in ppl over govt & not in govt over ppl”
Media	Context - Madhyamam Broadcasting Ltd case - SC quashed ban on MediaOne TV - Homogenised views on issues pose grave dangers to democracy” 2 pluralisms of Press - 1. internal (airspace for marginalized sections) & 2. external (plurality of news suppliers Ex: Corporatisation)	Gandhiji - “A free press should neither be an ally nor an adversary but a constructive critic” B J Verghese committee - National Broadcasting Trust independent of Govt Windhoek Declaration - promote independent press, pluralism,
Social Media	Apps’ websites that allow creation & exchange of user generated content. 3 Cs - conversations, community & connectedness 70 Cr active internet users - 90 cr by 2025 NITI - 68 lakh gig workers in 19-20 Judgements: IT Rules 2021 - traceability, due diligence by Social media cos - soft touch regulation Keywords: Digital un-democracy, surveillance capitalism Cyber marginalization Doom scrolling Phubbing E-mental health	Noam Chomsky - “Social media is a double edged sword” Data protection law on part of govt, due diligence & purpose limitation on part of Tech cos. & cyber hygiene on part of individuals
DPI	Digital public goods that provide the basic level of infra @ population scale allowing innovative applications to build on top of it 5D - device cost, digital - infra, divide, security, privacy	User centric design & Phygital models with strong anchor institutions like UIDAI
DPDP Bill	Recently DPDP Bill was passed with obj of processing digital personal data while balancing privacy & need to process data for lawful purposes Cyber crimes - 2 lakh in whole 2018 vs 1st month of 2022 > 2L Data is the new oil. Big data - 4Vs - Veracity, Volume, Variety, Velocity	EU - GDPR model of EU must be followed like right to be forgotten + JPC recommendation of including non personal data in ambit 9 principles of data protection as per A P Shah committee

	<u>IT Act 2000, IT Rules 2021 - S 69A - ban on some websites</u> <u>K S Puttaswamy</u> - Right to privacy - 3 tests - law, legitimate state int, proportionality - state duty to bring law <u>Data</u>: Collection of info stored in a computer or network in digital format <u>ES</u>: public good, of for & by the people	
Internet shutdown	<u>Govt measures to prevent/ disrupt access to the internet</u> <u>Context- Manipur</u> <u>Data</u> - India topped global list of documented IS with 84 disruptions in 2022 - “Access Now” <u>Brookings Study 2016</u> - Eco loss 2016 970\$ <u>Anuradha Bhashin case</u> - indefinite suspension of internet services contravenes 19(1)(a) & 19(1)(g)	<u>Parl Standing committee recommendations must be followed - clear policies & selective targeted restrictions</u>
Defamation	<u>Recently an MP was sentenced to 2 years criminal for defamation u/s 499,500 of IPC by Surat HC for remarks against a political leader</u> <u>One of RR in Art 19(2)</u> <u>Act of communicating false statements about a person that injure the reputation of that person</u> <u>Subramanyam Swamy case</u> - upheld - right to reputation u/a 21 & need for constitutional fraternity <u>> 2 years punishment for criminal defamation - ground for disqualification - S. 8(3) of RPA</u>	<u>Freedom comes with responsibility. Being an enumerated RR - need to interpret each case with utmost care to balance right u/a 19 with right to reputation u/a 21.</u>
UCC	<u>Art 44 - single law for personal matters based on presumption that no connection exists b/w religion & law in modern civilisation</u> <u>Judgements:</u> <u>Pannalal Patil case</u> - Despite the desirability of UCC, its enactment may be counterproductive to unity. Hence bottom up force is required <u>LC: Mere difference is not discrimination</u> rather indicates a <u>robust democracy</u>	<u>Piecemeal rather than wholesale social engineering</u> <u>LC : in absence of consensus, in a diverse country like India, best way is to preserve diversity and @ the same time ensure personal laws don't contradict FRs guaranteed by constitution through amendment of inequalities</u> <u>Ambedkar - only for those who are prepared to be bound by it</u>
Emergency	<u>The constitution under part XVIII (A 352 - 360) provides for the imposition of</u>	<u>Emergency provides built in flexibility in a SUI</u>

	emergency to deal with extraordinary situations that cannot be handled with existing administrative mechanisms.	GENERIS Constitution to secure the democratic political system, financial stability and SUSI of the nation.
Hate speech		Ambedkar - Without fraternity, liberty & equality would be no deeper than coats of paint
Federalism	Constitutional division of powers between 2 or more levels - K C Wheare - quasi - Morris Jones - Bargaining - S R Bommai - part of BSD	Over centralisation causes BP at the Centre & anemia at the periphery Punchhi commission - “Cooptv federalism will be the key to sustain India’s unity, integrity & socio-economic development in the future” Need to move towards 4 C - collaborative, convergent, creative & constructive federalism
Delhi GNTD (ordinance)	Recently Delhi Services Bill passed as per powers conferred under 239AA(3) (b) - Parl can frame laws beyond 3 matters in any list <u>Govt of NCT Delhi vs UOI -</u> - Delhi Govt has legislative & administrative powers, - triple chain of collective resp - In absence of law or constitutional provision, CG powers extend only to 3 areas	SC - Cooptv federalism envisages that C&S must iron out their differences through negotiation & conciliation
PRI	73rd & 74th CAA 1992 constitutionalised PRI to fulfil vision of art 40 of democratic decentralisation for grass roots democracy <u>Art 243 - 243O & 243O - 243ZG</u> <u>Fancy:</u> Recently Gram Panchayat Model Citizen Charter <u>KL - activity mapping</u> <u>15th FC - 1.42 lakh cr for panchayats</u> <u>KA - Sep Bureaucratic cadre</u> <u>Bellandur - TV live telecast of Panchayat meetings</u> <u>AP - village volunteer & secretariat</u>	Empowered local bodies can help drive triple engine growth With 65% of India residing in villages, PRIs can play pivotal role in ensuring “Gram Uday se Bharat Uday” “Future of India lies in its villages” - Gandhiji <u>3F to 4th F - Functionality</u> <u>Cooperative Sub-federalism</u>
Separation of powers	Division of L,E,J functions to limit arbitrary excesses by any one (Art 50) <u>Kesavananda Bharati, Indira Gandhi vs Raj Narain case - SOP part of BSD</u>	Coelho case - SOP is essential for constitutionalism
Dispute		

redressal mechanisms and institutions Tribunals		
Arbitration		
Lok-adalats		
Contempt of court		
Parliament	Parliament (Part 5 - Art 79-123) is the bicameral legislative organ under the parliamentary / “westminster” form of govt adopted by India The lower house of India's bicameral Parliament is the Lok Sabha (Art 81) Data: PSC reference : 72% to 27% (16th LS) Question Hour - 47% used in 19th LS, 40% questions remained unanswered Sittings - 150 days (1950) to 67 days (2014-19) Money Bills - 6/year to 11/year Ordinance - GNCTD Bill Disruptions - 16th LS - 19% of scheduled time Women - 15% Criminals - 30% (2009) of 43% (2013) Pvt member bills - last 50 years back Cost - 2.5 lakhs per minute	<u>NCRWC - 120/100 days</u> <u>Parliament - Enhancement of productivity Bill</u> <u>COE for MPs</u> <u>Need to transform Parliament from a forum for “adversarial combat with politics focus” to “deliberative democracy with policy focus”</u>
Rajya Sabha	Rajya Sabha (Art 80) is the second chamber of the parliament and represents the states and union territories of the nation Ambedkar was in RS Kuldeep Nayar vs UOI - duplicacy with LS 40% time lost in disruptions Sachin Tendulkar attendance - 24/374 days Only 3 Joint sitting in 60 years	<u>“Useless stepney tyre” to “most useful supporting organ” in recent past</u> <u>UK model - appointments committee selects nominated members</u> <u>Punchhi - domicile reqt + equal representation</u> <u>ABV - “RS may be the second house but no one should think of it as a secondary house”</u>
Legislative Council	India has a bicameral system both @ Centre & states. Vidhan Parishad is the upper house in States while Vidhan Sabha is the lower house. <u>Art 169 - creation & abolition of SLCs (TUMBAK)</u> <u>New resolutions by AS, OR, RJ</u>	<u>Give powers similar to RS & formulate a national plan for creation & abolition of SLCs</u>
Privileges	Refers to special immunities or concessions enjoyed by legislators individually & the house collectively (Art 105, 194) to facilitate their work <u>Searchlight Case - JR not applicable</u> <u>Raja Rampal case - Protection not applicable to unconstitutional acts</u>	<u>NCRWC has favoured codification by an independent body of experts in an open ended manner & strengthening of Privileges committee</u>
Parliamentary committees	A parliamentary committee is a panel of MPs appointed to act as / Constitution provides for	<u>4Cs -</u>

	various types of Parliamentary committees to bring - Meticulous parliamentary surveillance over executive action & deliberative democracy	- <u>constructive feedback,</u> - <u>checks & balances,</u> - <u>consultation with stakeholders,</u> - <u>convergence of diverse viewpoints</u> "Parliamentary committees bridge the gap between lawmakers and citizens, translating aspirations into effective governance." - P. Chidambaram
Speaker	Constitutional & ceremonial head of the LS u/a 93 tasked with presiding over the D2D functioning of the house Context - MH speaker accused Ex: MN SLA speaker - no decision on defection of opposition MLAs joining Ruling party KA Speaker - did not accept resignation of ruling party MLAs Unruly behav - TS MP used pepper spray in LS Megha Chandra Singh vs MN assembly case - take decision within reasonable time	Nehru - “In a parliamentary democracy, the speaker represents the dignity & freedom of the house” N Sanjeeva Reddy & Somnath Chatterjee - “build a healthy convention by appointing persons with integrity Dinesh Goswami committee - 2nd term uncontested
Anti-Defection	52nd CAA 1985 in 10th schedule provides for disqualification on basis of defection to prevent AyaRam GayaRam Politics Goa (2019) - 10/15 Congress MLAs joined BJP Recent MH KA - ruling govt collapsed after 17 MLAs resigned MN - speaker did not disqualify opposition defectors since no time limit Kihoto Hollohan case	Meghachandra Case - permanent tribunal instead of speaker + 3 months time limit Halim committee - define the term “voluntarily giving up membership” LC: - pre poll groupings are one party under 10th schedule - Delete the exception for mergers Dinesh Goswami - limited whip for vote of confidence cases
Ordinances	Art 123, 213 grants extra-ordinary law making power to Pres, Governor to promulgate ordinances when Leg is in recess to deal with unforeseen circumstances D C Wadhwa Krishna Kumar Singh case - court can question the wisdom & reverse the acts - not absolute power	NCRWC - - President must exercise caution & use only in special circumstances, - reduce period 6 weeks to 1 week
OOP	Art 102, 191 provide for disqualification of MPs/MLAs for holding OOP under govt except certain offices declared under OOP Act 1959	UK BP - whenever any new office comes up - committee decides pro-actively

	Pradyut Bordoloi vs Swapan Roy - SC outlined what constitutes OOP Jaya Bachan vs UIO - Even if capable of yielding profit / pecuniary gain even if not actually recovered Specialists get chance Ex: Atishi Marlena - Educator joined for Rs 1 Politics of appeasement Joint committee on OOP 	whether OOP or not 2nd ARC - Offices involved in executive DM, controlling public funds etc
Women Reservation Bill	108th CAA provided for 33% reservation in LS & SLAs on rotation basis for 15 years. Recently a pvt member bill sought to re-introduce the reservation Bill Biwi Bahu Beti politics 	UK - 40% compulsory reservation within political parties 1/3rd dual member constituencies Not panacea - O ACS

1. Historical underpinnings of the constitution
2. Evolution of the Constitution
3. Salient features
4. Amendments
5. Comparison of India's constitutional scheme with other countries

6. Executive

a. Governor

- i. Intro: Nominal executive head of state (Art 153) as well as an agent of the Centre at the State level

1. Judgements:

- a. Nabam Rabia & Shamsher Singh case - discretion u/a 163 is limited
- b. Hung Assembly - Rameshwar prasad case - follow the order
- c. President Rule : Sarkaria (rarest of rare case + warning) + S R Bommai
- d. Appointment: Sarkaria - appoint non political personality (Art 155)
- e. Removal: Surya

ii. Conclusion:

1. Sarkaria Commission - Governor's actions must be tempered with caution, dictated by reason & activated in good faith

7. Judiciary

a. Criminal justice system

i. Common introduction:

1. The criminal justice system of India refers to the framework and processes in place for dealing with criminal offences and ensuring justice is served.

ii. Common conclusion:

1. "Justice is not simply punishing the guilty, but also defending the innocent and ensuring due process for all." - Kofi Annan

b. Police reforms

i. PM recently recommended Prison reforms & repeal of obsolete criminal laws

ii. Data:

- 1. Shortage: 138/ lakh vs 222 reqd**
- 2. 36K cases pending with NHRC (custodial torture)**
- 3. 3% of govt spending**
- 4. Weaponry shortage - 75% in RJ**
- 5. BPRD: 68% SHOs said subordinates overworked (> 11 hours)**
- 6. Poor investigation quality - 47% conviction rate, 21% for women**
- 7. Sensitization poor, Colonial mentality - George Floyd case**

iii. Sugg: Prakash Singh case, Model Police Act 2015

iv. Conclusion: SMART policing, representative & sensitized force

v. Steps: POLNET, CCTNS, Modernisation of police force scheme

vi. BP: Janamaithri

c. Prison reforms

i. Intro: Amitava Roy committee highlighted various issues

- 1. 114% occupancy**
- 2. 69% undertrials (globally 15-20%)**
- 3. 1/3rd staff vacancy, 10% female staff**
- 4. Stan Swamy**

ii. Conclusion: UN standard minimum rules for treatment

- 1. Sugg: Model Prison Manual 2016, Art 39A**
- 2. A N Mulla committee - All India Prison services**
- 3. Charles Sobhraj case - Uphold HRs even in imprisonment, Role of NHRC, SHRC**
- 4. BP: Bandi Panchayat, Open Prisons (RJ)**

d. AIJS -

i. Introduction - centralised cadre of district judges recruited through All India exam & allotted to states like AIS - Art 312

- 1. Recommended by Jagannath Shetty Commission**

ii. Data:

- 1. 5000 vacancies**
- 2. AIS me bhi 25% vacancies**
- 3. Art 233 - appointment by Governor on consultation with HC**

iii. Conclusion:

- 1. Language & customs training & involving states**

e. Judicial issues

i. General Conclusion: "A robust judiciary is essential for upholding the rights of citizens and for holding those in power accountable for their actions." - Soli J. Sorabjee

ii. Judicial independence

- 1. Judicial protection act 1985,**

2. Art 121 - conduct cannot be discussed in Parliament

iii. Judicial accountability

1. Instances -

- a. PoNJ - Gogoi Sexual harassment, contempt
- b. Secrecy - Master of roster Deepak Mishra,
- c. Independence - Gogoi - RS

2. Conclusion:

a. Suggestions:

- i. ARC: Judicial Lokpal, Judicial Code of conduct
- ii. NITI : Judicial perf index
- iii. Judicial standards & accountability bill 2010

- b. Justice Hidayatullah - In Naresh Sridhar case - accountability & integrity increase a court's prestige & faith rather than reducing it

iv. Women in Judiciary

1. Recent remarks by CJI N V Ramana on need for 50% reservation for women in judiciary is corroborated by the fact there are only 11.5% women judges in HC & India has never had a female CJI

- a. Data: Only 15% women lawyers
- b. Enhances "democratic legitimacy" - Justice B V Nagarathna

2. Conclusion:

- a. BP: AS, AP etc have women reservation in lower judiciary (40-50% representation now)
- b. "Women belong in all places where decisions are being made" - Ruth Bader

V. Contempt of court -

1. Introduction: Art 129, 215 along with COC Act 1971 provides court with civil & criminal powers of contempt

- a. Criminal - SODI - scandalising, obstructing, disrespecting, inter in admin

2. Ex: Prashant Bhushan, Justice Karnan - 6 months jail

3. WF:

- a. Amendment to contempt of court bill 2013,
- b. S Malgaonkar judgement - Judiciary not immune from fair & genuine criticism
- c. Law commission: restrict to civil

4. Conclusion:

- a. Rajesh Kumar case - Judiciary must earn respect through broad shouldered approach & not command it by imposing contempt

vi. Activism & Overreach

1. Intro:

- a. Activism = judicial action in public interest when Exec & leg fail to step in as per court's guardian ethic (Ex: Vishakha guidelines)
- b. Overreach = Breaching SOP through overt interference in Exec, Leg domain to take up their role supplanting them

2. Conclusion: Premchand Garg case - supplement not supplant by holding them accountable rather than stepping in unless absolutely necessary

Vii. Collegium

1. Intro: The system of appointment & transfer of judges that has evolved through judgements of the SC & not by an Act of the Parliament or by a provision of the Constitution
 - a. 1st Judges 1982
 - b. 2nd judges 1993
 - c. 3rd judges 1998
 - d. 4th judges 2018 - NJAC
2. Conclusion: Ret CJI V S Verma - there is a need for accountability & transparency in judicial appointment process

Viii. Pendency

1. Intro: As per Law ministry - 5 cr cases pending in Indian courts (87% with lower judiciary)
 - a. Judges shortage - 21/million vs LC: 50/million
 - b. CCR - 89% (must be > 100% for creating huge backlog)
 - c. Govt largest litigant (50% cases)
 - d. Sittings in days - 190 (SC), 210 (HC), 250 (DC)
 - e. 50% adjournment rate
 - f. Vacancies - 30% in HC, 20% in DC
 - g. Spending on judicial infra - 0.1%
 - h. Gram Nyayalaya - aim 5K vs 150 functional
2. Conclusion: William Gladstone: Justice delayed is justice denied
3. BP:
 - a. UK crown court management services - indep administrative cadre
 - b. Slovakia fastrack courts - 60 days
4. Steps taken: National Litigation policy 2015 (aim to reduce pendency from 15 years to 3 years)

8. Pressure groups -

- a. organized group which aims to influence the policies or actions of govt
- b. Move towards promotion of more broad based, inclusive & Institutionalised PGs to deepen participative democracy in MOD

9. Formal & Informal associations and their role in the polity

10. RPA & Elections

- a. Common Conclusion:
 - i. Jimmy Carter - "Free & Fair elections are lifeblood of any democracy"
 - ii. India as mother of democracy
- b. RPA
 - i. In exercise of powers conferred u/a 327 of the constitution, Parliament passed the RPA 1951 to ensure free & fair elections in India.
- c. Election reforms
 - i. Refers to positive changes in election processes in order to promote greater democracy
- d. Election funding
 - i. Intro: 475 crore pats in 17th Lok Sabha as per ADR

- ii. Conclusion: Ornit Shani - "When the power of a vote is diluted through opacity in political funding, democracy loses its intrinsic value"

e. Electoral Bonds

- i. Budget 17-18 announced Electoral Bonds as interest free financial instruments for anonymous donations to political parties resembling a promissory note
 - 1. 83% from 4 metro cities
 - 2. 91% from > 1 cr
 - 3. 95% for ruling party in 17-18

f. Simultaneous elections

- i. Intro: Structuring elections in a manner that LS & SLA elections are synchronised - recently recommended by ECI, LC & PSC
 - 1. Will require amendment of A.172 & A. 83 (duration of LS, SLA) + RPA
- ii. Conclusion: Law commission : 2 phased implementation: Synchronised with LS & Midterm of LS, Hold all bye elections together in a year,

g. Criminalisation

- i. Intro - 43% MPs with criminal records in 17th LS - 38% have serious charges
 - 1. Milan Vaishnav - from nexus to vertical integration
- ii. Conclusion - Delhi HC 2018 - "Like a cancer, eating into the vitals of a democracy"

h. ECI -

- i. ECI
 - 1. Recently new bill for CEC & EC Appointment, T&C conditions of service repealing ECI Act 1991
 - a. Anoop Bharanwal case 2023 - Art 324(2) intent is to pass a law securing independence of ECI
 - 2. Art 324 provides for the office of ECI to carry out superintendence, direction & control of F&F elections At Centre & States.

11. Constitutional bodies

a. Quasi Judicial Bodies

- b. 4th Branch institutions - structural & operational independence + competence is a sine qua non - Need to reimagine ____ into becoming a truly transformative agency for the protection & promotion of interests of ... Sen's idea realisation focused

c. UPSC -

- i. Intro: Art 315 to 323 under part 14 provide for UPSC as India's premier central recruiting agency for CG public servants
- ii. Conclusion: Imp role as watchdog of the merit system

d. CAG

- i. Independent authority u/a 148 of the constitution acting a chief guardian of the public purse
- ii. Vinod Rai committee - revamp the CAG Act of 1971 & expand of Scope & powers of CAG AG
- iii. "The CAG is the conscience keeper of government finances, ensuring that taxpayer money is used judiciously and efficiently." - Rajiv Mehrishi (former finance secy)

e. Finance Commission

- i. FC is a quasi judicial body constituted by the President u/a 280 for the purpose of vertical & horizontal allocation of revenue resources b/w Union & States
- ii. Must ensure adequate state involvement in framing TORs & fiscal transparency to act as balancing wheel of fiscal federalism,

f. NCSC/NCST/NCBC

- i. Quasi Judicial body constituted under Art 338/338A/338B to safeguard the interests of SCs/STs/OBCs in India
- ii. Despite various protective & promotive provisions of __, SCs continue to face deprivations.
- iii. Sen - Must move from arrangement focussed view of justice to realisation focussed understanding of justice.

g. Interstate Council

- i. Art 263 contemplates establishment of inter state council by President to discuss issues of mutual interest b/w centre & states
- ii. Only 12 meetings since 1990
- iii. Need to revitalise it & give it more teeth to leverage its true potential as the only constitutional multilateral forum for C-S cooperation

h. Special officer for linguistic minorities

- i. The office of __ was constituted under art 350B through 7th CAA 1956 to promote & protect the interests of linguistic minorities of India
- ii. India - > 1600 languages

12. Non consti bodies -

a. Common suggestion - confer constitutional status

b. ED/CBI

- i. Common intro:
 1. Recent case - Dr Jaya Thakur vs UOI : SC upheld annual extension of tenures of CBI & ED Directors
- ii. Conclusion:
 1. CBI - ARC 2 recommendation - replace DSPE ACt with a separate law for CBI conferring statutory status with accountability directly to the Parliament
 2. ED - Imp role today in light of increasing financial frauds & crimes like ML - as premier financial investigation agency of Govt. Need to ensure expeditious and independent resolution of cases to improve conviction & prevent process from becoming punishment.

C. NHRC

- i. Introduction: Statutory body under Protection of Human rights Act 1993 as watchdog of human rights in India
- ii. Data:
 1. 1400% rise in complains since 1990 but staff strength down by 17%
 2. 40K cases pending
 3. 1 Billion rs. Awarded till today
- iii. Sugg: A M Ahmadi committee: Increase time limit beyond 1 year + include paramilitary
- iv. Conclusion:
 1. SC - toothless tiger. Need to change this to realise India's commitment to human rights under UDHR & promise of preamble

d. NCM:

- i. Statutory body under NCM Act 1992 working for development of recognised minorities in India
 1. Data: 20% minorities - maximum Muslims 14%
 2. 6/7 positions vacant - Delhi HC directed to fill up

3. No report tabled in Parliament since 2010

- ii. Conclusion: strengthen it through greater tooth, operational independence & active stakeholder participation

e. NCW

- i. Intro:

- 1. The NCW is a statutory body setup in 1992 under NCW Act 1990 to review the constitutional & legal safeguards for women

- ii. Conclusion:

- 1. PM Modi recently suggested that given the evolving needs of women in the country, the scope of NCW must be broadened

f. Lokpal/Lokayukta

- i. Intro: Lokpal is the ombudsman that inquires allegations against public servants on charges of corruption as per Lokpal and Lokayukta Act, 2013

- ii. Conclusion - "Without strong watchdog institutions, impunity becomes the very foundation on which systems of corruption are built" - Rigoberta Tum

g. CVC

- i. Intro: Conceptualised by the Santhanam committee in 1994, CVC was given a statutory status under 2003 CVC Act to function as apex vigilance institution to tackle corruption

- 1. Data: 86th rank in Corruption Perception Index

- ii. Conclusion: same as NCM - strengthen

h. CIC

- i. Statutory body under RTI Act 2005 to inquire into non compliance with RTI Act

- ii. Conclusion: Strengthen 3 F + restore independence diluted through recent amendment

Governance

1. Schemes

- a. _____ scheme was introduced in ____ to for _____
- b. **Effective implementation of the scheme requires holistic coordination and an effective monitoring ecosystem**
- c. **JR D Tata - "most of our problems are due to poor implementation, wrong priorities and unattainable targets"**

Scheme related issues:

1. Targeted Beneficiary identification -

- Inclusion exclusion errors,
- low awareness

2. Formulation -

- One size Fit all
- Top down - LSG
- low community, civil society participation
- Multiplicity/convergence/jurisdiction overlap

3. Capacity - 3F -

- Funds - low outlay/underutilisation
- Functionaries - trained committed staff
- Functions - low coverage
- Infra deficit

4. Implementation -

- Corruption/ leakages
- Poor quality
- Poor GRM
- Red tape & Bureaucratic delay
- Socio-cultural barriers

5. Post implementation -

- Poor monitoring/ midcourse correction
- Solution: Tech, local self govt, ART

2. E governance

- Use of ICT by govt to deliver services in G2G ; G2B & G2C**
- E governance leads to SMART governance (speedy ; moral ; accountable ; responsible ; time bound)**
- Best practice : RTGS(realtime governance society) initiative of AP**
- E - estonia**
- "E-governance is easy, effective and efficient governance, and the only way to move from good governance to pro active pro people gg." - Narendra Modi**

3. Role of civil services

- Govt servants tasked with formulation and implementation of public policies for realising a welfare state (a. 38)**
- "Civil servants are the silent architects of a nation's progress, dedicated to translating policies into actions that shape the destiny of India." - Dr. A.P.J. Abdul Kalam**
- "Civil servants are the bridge that connects government policies with the aspirations and welfare of the people they serve." - N. R. Narayana Murthy**

- d. **Mission Karmyogi - india of future needs future ready civil services**

4. ART

a. Accountability

- i. **Obligation of those in decision making position positions to report, explain and be answerable for resulting consequences of one's actions**
- ii. **"Without accountability, resources are wasted, corruption flourishes, and trust in institutions is eroded." - Ban Ki-moon**

b. Responsibility

- i. **"You are not only responsible for what you say but also for what you do not say." - Martin Luther King Jr.**

c. Transparency

- i. **Transparency - Increased flow of timely and reliable info which is accessible for scrutiny & general interest of public**
- ii. **Transparency is essential for preventing corruption, promoting citizen participation, and building trust, thereby fostering effective and accountable decision-making processes**
- iii. **Info is the currency in a democracy**

5. RTI ; social audit ; citizen charter

a. RTI

- i. **RTI is a tool that enables citizens to access info from a public authority & hold officials accountable as a legal right**
- ii. **ARC 2 - RTI is the most imp legislation since independence. It marks the beginning of an era of dawn & ends the era of darkness**
- iii. **"Sunlight is the best disinfectant" - 2nd ARC**
- iv. **Woodrow Wilson - "corruption thrives in secret places - avoids open spaces"**

b. Social audit

- i. **Beneficiary led assessment of govt programs to ensure good governance.**
- ii. **"Social audit is not just an evaluation of programs; it's an assertion of people's rights to dignity, transparency, and accountable governance." - Aruna Roy**

- iii. **Social audit not only enhances democratic accountability ; but also leads to social empowerment.**

C. Citizen charter

- iv. **A document publishes by an organisation that assures quality of services within a time frame**
- v. **Models like Mo Sarkar of OD ; right to service bill of MP can be adopted pan India to enhance the quality of service delivery and inclusive governance**
- vi. **Sevottom model**

6. NGOs

- a. **Voluntary associations of public spirited individuals for altruism and public service.**
- b. **NGOs informal agents of the society that provide propulsion for the formal democratic system**
- c. **NGOs are sin qua non for a healthy democracy as they ensure “sarve bhavanthu sukhinah sarve santu niramya “ (may everyone be happy)**
- d. **Nelson Mandela - if we want any significant development, we must Co-opt civil society**
- e. **3 C - collaboration, compassion, collective resp, (convergence, customisation)**

7. SHGs

- a. **SHGs are small community-based organisations formed by individuals with common socio-economic goals, aimed at fostering financial inclusion, skill development, and collective empowerment**
- b. **FM budget speech : “ govt aims to create unicorns among SHGs “**
- c. **PM : “ SHGs need to be transformed into national help groups “**
- d. **SHG : untapped powerhouse of enterprise ; high potential groups for social good**

8. Donor and charities

- a. **Donor agencies are institutions, local national or international, that provide financial and technical assistance to support development initiatives in various countries**
- b. **Charities are NPOs driven by altruism, focusing on**

philanthropic activities for underserved communities

- c. The spirit of collaboration, compassion and collective responsibility to create a world where every individual can thrive, regardless of their circumstances.**

9. Aspirational block Prog

- a. ABP was launched in 2023 budget ; based on ADP ; aimed at improving the performance of blocks lagging in various developmental parameters**
- b. Progressive decentralisation and effective targeting of schemes is leading to inclusive and effective governance**

10. Corruption:

- a. Intro: Corruption is the misuse of entrusted power or position for personal gain**
- b. Conclusion:**
 - i. "Corruption is a tax on the poor and a tax on development." - José Ugaz**
 - ii. SDG 16**

Social Justice - refer Mehak Jain

1. Common:

- a. Intro: Data**
- b. O ACS Voice Choice**
- c. Conclusion:**
 - i. SDG 1 poverty, 2 hunger, 3 health, 4 education, 5 gender equality, SDG 16 - Inclusive societies, effective & accountable institutions**
 - ii. Art 47 - duty to raise level of nutrition, SOL & public health**
 - iii. Art 38 - welfare state, social economic political justice and minimising inequalities between individuals and groups of people.**
 - iv. Sapt Rishi - leveraging full potential & ensuring inclusive growth**
 - v. To leverage full potential of india's human capital, the engine of India's Amritkaal**
 - vi. Sabha sath sabka vikas**

2. Role of women

a. Gender equality

i. Intro:

b. Women empowerment

c. Common intro on status of women

3. Poverty

a. Intro:

i. Any deprivation that prevents you from achieving your true potential

ii. 13.5

b. COVID & poverty:

i. Intro: 80% people pushed into poverty globally were from India - WB

c. Conclusion: “unleash the power of the poor & there will be no poverty” - Mohammed Yunus. Hence need for capacity building & gainful employment.

d. “Overcoming poverty is not a gesture of charity, but an act of justice”- Mandela

4. Hunger

a. Food Security:

b. Intro: 107/121 in Global Hunger Index

c. Conclusion : Sahi Poshan Desh Roshan

5. Health

a. Conclusion:

i. Integrated life cycle approach from “clinic to community” & + one health approach

ii. Sugg: 5 Ps - Prevention, Primary health, Public invt, Planetary Health, Patient centric value based healthcare

iii. “Swasth Bharat, Samriddh Bharat”

b. Mental Health -

i. Intro: UNICEF 2021 report - Every 1/7 youngster between 15-24 years reported mental health issues

ii. Conclusion - TELE MANAS initiative

6. Education

a. Intro:

i.

b. Conclusion :

i. Future of Education is Education 4.0 focussed on 21st CE skills & 4Cs - critical thinking,

communication, collaboration, creativity

ii. NEP can become a game changer - India as a hub of Global Capability Centres

c. Data:

- 6 million out of school children - 75% from marginalised sections**
- 1 extra year of school increases income by 10% for males and 20% for females**
- India loses 17 Billion \$ annually to brain drain (ASSOCHAM)**

d. Female education:

- i. MMR can reduce to 1/2 by ensuring secondary education to the mother**
- ii.**

7. Human resources

a.

8. Vulnerable sections - schemes ; laws ; bodies

a. Common conclusion -

- i. Ambedkar's mantra of "EAO - Educate, Agitate and Organise"**
- ii. Need to reform from Darwinian "survival of fittest" to "survival of the weakest" or Antyodaya**
- iii. Art 38**

INTERNATIONAL RELATIONS

Shiv Shankar Menon, brahma chellany, s Jaishankar,

Harshwardhan singla, C Ramamohan

1. India's foreign policy

- Indian foreign policy is a complex blend of strategic autonomy, and omni directional diplomatic engagement, aiming to safeguard national interests, promote global stability, through a balanced approach to international relations**
- Intro : S Jaishankar - " FP is an exercise of forging convergences and managing divergences " ; Ar 51 provides the directives to conduct state's FP**
- Conclusion : Emergence of global heteropolarity coupled with India's energetic diplomacy paves way for India to be a Vishwaguru**

- **Conclusion** : there are no permanent friends and no permanent foe ; only interests are permanent.
- **New challenges** forces us to adapt to new realities
- **SSM** - “minimaxing” - harms and gains
- 2. India and its neighborhood**
 - **Common:**
 - i. **Conclusion:** 2 speed regionalism + create Strong dependency bonds
 - **Bangladesh** -
 - i. **INTRO:** India’s ties with Bangladesh is a role model in IRs – Harshwardhan Singla
 - ii. **CONC:** leverage close fraternal ties + include Bangladesh in IMT
 - **Nepal** -
 - i. **INTRO:** We share open Borders & deep-rooted ties of kinship and culture (Roti, Beti ka rishta)
 - ii. **CONCLUSION:**
 - 1. **PM Modi** – “Our relation needs mutual trust, equality, & benefit to sustain it”
 - 2. **The India Nepal Border** should not be barrier but a bridge to bring prosperity to both sides – PM Modi
 - **Bhutan** -
 - i. **INTRO:** Strategic buffer state between India and China
 - ii. **CONCL:**
 - 1. **C Rajamohan** – 2 speed regionalism – faster integration of subregion of South Asia (BIMSTEC – BBIN)
 - 2. **K M Dixit** – East South Asia policy needed – subregional development
 - **SL** -
 - i. **INTRO:** “Relationship with India is our most important relationship, period” Milinda Moragoda – SL High Commissioner – after India’s coop in crisis
 - ii. **CONCL:**
 - Milinda Moragoda** – SL’s High commissioner to India - “Focus must be on elevating the bilateral ties from the current “transactional”

phase to one that is more “strategic”.

Blood is thicker than water - S Jaishankar

○ **Myanmar -**

- i. **“Myanmar is the pillar of India’s Act East policy” – PM Modi**

○ **Afghanistan -**

- i. **Intro: Afghanistan is situated at crossroads of Middle-East, Central Asia and Indian sub-continent**
- ii. **Conclusion:**
 1. **Former diplomat Rakesh Sood: “India’s vision is Sovereign, United, Stable, Plural and Democratic Afghanistan”**
 2. **“People of Afghanistan are among India’s foremost priority,” - NSA - shows India’s vision of separating regimes from ppl, double peace**

○ **Pakistan:**

- i. **Facing poly crisis - political & economic stability apart from a fragile internal security scenario**
- ii. **Conclusion -**
 1. **REVIVE SAARC - “Politics and Economics can help to repair fractured history and geography.”**
 2. **Failed, dysfunctional, ungoverned Pak - not good for India - huge land border**
 3. **ABV - you can choose your friends not neighbours**

3. India’s changing stature/role

- **2020 and 2021 saw many transformational events in the global sphere which led India to emerging a major swing state**
- **India is part of both global managers and the trade union - Vivek Katju**
- **The world want to be seen with India ; heard**

4. Diaspora

- **Indian diaspora refers to the people who are currently living outside India (temporarily or permanent) but trace their origin to India (NRI+ OCI).**

- **As per world migration report - India has the largest emigrant population in the world of 31 mn (13 mn NRI + 18mn OCI)**
- **Conclusion :**
 - **parliamentary committee : Bring out a policy document on diaspora acting as guiding principle for deeper and wider engagement + expand scope and activities of ICCR**
 - **PP Chaudhary committee - Include the vulnerable diaspora in PBD,**
 - **emigration bill 2021**
- **4c - connect celebrate care contribute**
- **Devi Shakti, prabhas and vajra, Madan portal & PB sahsyta kendra, shades portal for skill mapping**
- **PM : Living bridge, rashtradoot (cultural ambassadors)**
- **Examples: natu natu Oscar, little India in Australia, Satya Nadella, Sundar Pichai, mahendra choudhary Fiji PM, 20 Indians in Biden admin, Yusuf Ali in uae lulu group, patel wines in usa, concert diplomacy, Namaste Pacifica, active dissociation to strategic asset, operation Kaveri, Devi Shakti**
- **111 billion \$ remittances**
- **Devesh Kapur - 4 channels - prospects (brain gain through HE invt) , absence (high wages), diaspora (social remittances), return (increased human capital)**
- **Long distance nationalism**

5. Changing world order

- **The current world order as suggested by the polarity dilemma is without a systemic equilibrium, which is essential to the maintenance of international stability.**
- **SSM - the world order is militarily unipolar, economically multipolar and politically confused**
- **Modi - in a world full of fault lines and rifts we need to build a shared future**
- **S jaishankar : india has entered a phase of energetic foreign policy where it is not anymore a passive recipient of global happening**

- **Tony Blair - Globalisation is irreversible**
- **SSM - we are headed for a poorer meaner and smaller world**
- **Features -**
 - **polycrisis,**
 - **two blocs - 3 Ts (trust deficit, trade and tech warfare, treaties lacking),**
 - **geopolitical and geoeconomic realignments (friendshoring, deamericanisation, natoisation, new great game, great Eurasian partnership),**
 - **deglobalisation (economic unilateralism, trade lawlessness, economic nationalism, minilateralisation),**
 - **security threats (hypersonic), 4th and 5th domain hybrid warfare (cyber, space)**
 - **Thucydides trap (threat from emerging power),**
 - **kindleberger trap (global leadership vacuum) - G zero**
 - **Pacifist powers revival, middle powers swing state, tech and big tech companies challenging susi**

6. Bilateral

- **India & ____ relations are driven by deep historical , cultural , geostrategic convergence shaping the new geopolitical realities**
- **Conclusion : India and ____ relations are complementary and both countries must leverage each others strength to foster economic growth and development and balance china**
- **india and ____ are effectively constructing a new partnership to shape the regional order and not just simply accepting the current geopolitical situations**
- **Africa : African philosophy : Ubuntu philosophy - inclusive growth - universal bonding that connects all humanity**
-

7. Regional

- **Generic**
 - i. **Harness the soft power potential to gain leverage and enhance engagement**
 - ii. **Enhance diplomatic engagement to ensure maximum potential benefits to both**
 - iii. **Reciprocity and mutual understanding on common concerns will help both to overcome some of the challenges facing the relationship**
- **G20**
 - i. **Introduction : India hosted the 18th G20 summit in delhi ; thereby taking leadership at critical time when world is facing polycrisis**

- ii. **Conclusion : Significance of G20 lies in its potential to shape inclusive and balanced global growth in an interdependent world.**
 - iii. **With India being the chair of G20 ; therefore india should take a proactive role in pushing for reformed multilateralism and act as the voice of global south**
- **SAARC & BIMSTEC**
 - i. **Intro : _____ is a south asian regional organisation to promote _____ in the region**
 - ii. **C rajamohan : 2 speed regionalism**
- **BRICS**
 - i. **BRICS is a platform of 5 major emerging economies representing 42% of the world population, 30% of the world's territory, 23% of global GDP, and around 18% of world trade.**
 - ii. **BRICS plus framework can be used to widen the “ circle of friends “ to enhance south south cooperation**
 - iii. **BRICS is emerging as a important arena for rupee internationalisation and development of alternate multilateral institutions like CRA ; NDB**
- **SCO**
 - i. **SCO is a permanent intergovernmental international organisation aiming to maintain peace, security and stability in the region.**
 - ii. **India needs to maintain strategic autonomy and focus on revitalising the connectivity projects (ashgabat agreement) and playing a constructive in CAR**
 - iii. **“Pm Modi - we do not only see sco as extended neighbourhood but as extended family”**
 - iv. **India must use its presidency and increasing popularity of sco as evidenced from its expanding reach (Iran) to take the multi faceted cooperation to new heights**
- **QUAD**
- **strategic forum comprising four countries: the United**

States, Japan, India, and Australia aimed at promoting **regional security and economic cooperation** in the Indo-Pacific region.

- i. **Bearing the strategic lessons in mind QUAD countries should deepen its economic and military cooperation ; not to provoke china ; but built capacity if the need arises**
 - ii. **Pm modi - “quad is a force for good”. India to host quad summit next year - opportunity**
- **ASEAN**
- i. **ASEAN as an organisation was established accelerate economic growth, social progress and cultural development for a prosperous and peaceful community of Southeast Asian Nations.**
 - ii. **Conclusion : Connecting the connectivities approach + Commitment to multilateralism**
 - iii. **Modi - ample closeness between India's "Indo Pacific Oceans Initiative" and ASEAN's "Outlook on Indo Pacific". We firmly believe that a "Cohesive and Responsive ASEAN" is essential for "Security and Growth for All in the Region"**

8. Global grouping

- **Eg : UN ; WTO ; IMF**
- **___ established to promote ___**
- **India is one of the founding member of ___ ; which ensures (role)**
- **Democracy deficit in ___ calls for reformed multilateralism to promote human centric globalization**
- **PM Modi : developing countries want human centric globalization ; therefore india should take a proactive role in pushing for reformed multilateralism**
- **UN : india suggested for NORMS(new orientation for reformed multilateral systems)**
- **WTO : with the increasing trends of protectionism and trade wars ; WTO should take the centre stage to protect the liberal economic world order**
- **PM Modi : 3Ts : trust , transparency and Timeliness**

9. Russia Ukraine

- **Russia - ukraine war is increasingly becoming a frozen conflict**
- **India is following omnidirectional foreign policy engaging with all the stakeholder to ensure India's strategic autonomy**
- **India can play a role of mediator ; has good relations with both the countries thus providing India with an opportunity to increase its global stature**

10. Voice of global south

- **Introduction : recently hosted a special virtual summit , the Voice of global south summit.**
- **Global south refers countries of southern hemisphere having collective identities of colonization , exploitation and underdevelopment**
- **PM Modi : the era of leader and led is over**
- **PNG PM - "We want India to be an advocate for us & sit in meetings of global high table"**
- **SJ: "Global South expects India to play a stabilizing and bridging role, by derisking the global economy and depolarising the world."**
- **Brandt Line**

11. IOR

- **Introduction : The IOR stands as one of the most strategically significant and economically dynamic areas on global stage gaining strategic importance**
- **Indo pacific is the confluence of 2 seas ; dynamic coupling of the Indian Ocean and Pacific Ocean , it is the new emerging geopolitical theatre**
- **"The Indian Ocean, with its critical sea lanes and vast reservoir of resources, will be a highway to prosperity and a theatre of rivalry." - C Raja Mohan**

12. International organisation

13. _____ Diplomacy

- **Using _____ diplomacy enables to use expertise in the _____ field to advance country's strategic interest**
- **Conclusion : 5Ts : talent , tradition , technology , tourism and trade - new areas of focus by Indian embassies**

- **Economic diplomacy**

- i. Economic diplomacy - use of diplomatic skills with economic tools to advance country's objective

- ii. **Economic diplomacy should look for balance between competition and cooperation at global level ; driven by concerted efforts at home**

14. Soft power

- **According to Joseph Nye ; soft power is the ability to shape the preference of other through appeal and attraction**

- **"In the information age, a nation's power is increasingly defined by its ability to influence as much as to militarily and economically dominate."**
- Shashi Tharoor